NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 19.04.2018.

PRESENT: 1. Hon'ble member (J) **Shri Rajeswara Rao Vittanalla,**
2. Hon'ble member (T) **Dr. Ashok Kumar Mishra,**

CP/CA No	Purpose	Section	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
IA 44/18 in CP(CAA) No.60/BB/2017	For hearing	230/ 232	Lifetree Cyberworks Pvt. Ltd. & Others	Cyril Amarchand Mangaldas		M.R. Sinchana, CGC for ROC/RD

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

I.A. No.44/18 in CP(CAA) 60/2017 is filed by the Petitioner under Rule 24 of Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 for correction of the Scheme of Arrangement filed by the Petitioner Company.

Heard Mrs. Shruti Jere, learned counsel for the petitioner. The learned counsel submits that in clause 9.1 of Part II of the Scheme of Arrangement filed in the Company Petition, it is found that there was an error committed inadvertently in Clause 9.1 of Part II of the Scheme in relation to the calculation of the authorised share capital of the Second Transferor Company post the amalgamation of the First Transferor Company into the Second Transferor Company.

After realising the mistake in drafting the pleadings, the Board of Directors of the Company have passed a resolution for amending Clause 9.1 of the Scheme and the Board of Directors have been duly authorised by the Shareholders and/or creditors in the meetings convenend for the purpose of the Scheme. Therefore, the Board of Directors are entitled to amend the proposed amendment.

Moreover, none of the parties are going to be affected by carrying out the above amendment. Therefore, the learned counsel for the applicant has prayed the Tribunal to allow the I.A. as prayed for.

We have considered the pleadings of the parties and the provisions of the extant Rules of the Companies Act/Rules, and we are satisfied that the petitioners are entitled to correct the company petition as prayed for.

Accordingly, I.A. No.44/2018 is allowed by permitting the petitioner to amend the Company petition and file the amended petition within two weeks, duly served on the concerned authorities, and the ROC is also at liberty to file additionaly reply, if so required, within a period of two weeks thereafter .

Post this petition for final hearing on 28.05.2018.

19/4/18

MEMBER (T)

MEMBER (J)